



HERMIA

INTELLIGENT LEAD QUALIFICATION FOR REAL ESTATE

Software-as-a-Service Services Agreement

KEY COMMERCIAL TERMS

INITIAL TERM

6 Months

SETUP FEE

\$1,700 AUD

MONTHLY FEE

\$444 AUD

JURISDICTION

Victoria, AU

capital@hermia.au · hermia.au · ABN: 75 434 177 026

This Agreement is governed by the laws of Victoria, Australia.



This **Software-as-a-Service Services Agreement** ("Agreement") is entered into between **Hermia** ("Provider") and the customer identified during the Hermia onboarding process ("Customer"), and governs the Customer's access to and use of the Hermia platform (the "Service").

Electronic Acceptance: By ticking the acceptance checkbox in the Hermia onboarding form and paying the Setup Fee, the Customer agrees to be legally bound by this Agreement under the *Electronic Transactions Act 1999* (Cth) and *Electronic Transactions (Victoria) Act 2000*. No handwritten signature is required.

A Definitions

In this Agreement, unless the context requires otherwise, the following terms have the meanings set out below:

Agreement	This Software-as-a-Service Services Agreement, including any schedules, annexures, or onboarding documentation referenced herein.
Commencement Date	The date on which the Customer pays the Setup Fee in cleared funds.
Confidential Information	Any non-public information disclosed by one party to the other that would reasonably be understood to be confidential, including pricing, technology, and customer information.
Customer Data	All Personal Information, property enquiry data, lead records, communications, and other data processed by the Service on behalf of the Customer.
Force Majeure Event	Any event beyond a party's reasonable control, including acts of God, pandemic, war, civil unrest, power failure, internet outage, regulatory action, or failures of Third-Party Services.
GST	Goods and Services Tax as defined in the <i>A New Tax System (Goods and Services Tax) Act 1999</i> (Cth).
Initial Term	The period of six (6) months commencing on the Commencement Date.
Intellectual Property Rights	All current and future intellectual property rights including copyright, trade marks, patents, designs, trade secrets, know-how, and all rights of a similar nature anywhere in the world.
Personal Information	Has the meaning given in the <i>Privacy Act 1988</i> (Cth).
Provider	Hermia, the operator of the Hermia platform.
Service	The Hermia platform and related services described in clause B.
Setup Fee	AUD \$1,700 (inclusive of GST), payable on the Commencement Date.
Subscription Fee	AUD \$444 per calendar month (inclusive of GST), payable in advance.



Third-Party Services

External platforms relied upon to deliver the Service, including ClickSend, OpenAI, HubSpot, Airtable, Gmail, Stripe, Notion, Make.com, and any successor or replacement providers.

B The Service

B.1 The Provider agrees to provide the Customer with access to the Service for the duration of this Agreement, subject to payment of all applicable fees and the Customer's compliance with this Agreement.

B.2 To deliver the Service, the Customer grants the Provider authorised access to the following Customer accounts and systems:

- **Gmail** — to monitor the Customer's inbox for inbound buyer property enquiries;
- **SMS messaging** (on the Customer's behalf) — to send qualification messages to leads and receive their responses;
- **HubSpot CRM** — to create and update lead contact records, assign lead status, and send internal memo emails;
- **HubSpot Meetings** — to enable leads to self-book property inspections directly into the Customer's calendar;
- **Airtable** — to archive and store leads that do not meet the active follow-up threshold.

B.3 The Provider uses its own proprietary technology and Third-Party Services to deliver the Service. The specific technology stack is confidential and forms part of the Provider's Intellectual Property Rights. The Provider is not required to disclose the tools, platforms, or methods used internally.

B.4 The Service is provided on an "**as is**" and "**as available**" basis. The Provider makes no guarantee, representation, or warranty as to any specific number of leads, lead quality, response rates, conversion rates, or sales results.

B.5 The Provider may update, modify, or enhance the Service from time to time and will use reasonable endeavours to notify the Customer of any material changes that adversely affect core functionality.

B.6 The Provider will use commercially reasonable endeavours to maintain Service availability of at least 98% per calendar month. This obligation does not apply to: (a) scheduled maintenance (of which the Provider will give at least 48 hours' notice where reasonably practicable); (b) Force Majeure Events; or (c) failures, outages, rate limits, or policy changes of Third-Party Services.

C Fees & Payment

Fee Type	Amount (AUD, incl. GST)	When Due
One-Time Setup Fee	\$1,700	Immediately on signing, via Stripe
Monthly Subscription Fee	\$444 / month	In advance, on the 1st of each calendar month, via Stripe recurring

C.1 Access to the Service will not be granted until the Setup Fee is received in cleared funds.

C.2 If the Customer fails to pay any amount by its due date, the Provider may, at its discretion: (a) charge interest at 10% per annum, calculated daily; (b) suspend access with five (5) business days' written notice; and/or (c) terminate this Agreement under clause G.



C.3 All fees are non-refundable except as expressly provided in clause G or as required by the Australian Consumer Law (Schedule 2, *Competition and Consumer Act 2010* (Cth)).

C.4 The Customer is solely responsible for all Third-Party Service costs incurred in connection with the Service, including ClickSend SMS credits, OpenAI API fees, HubSpot, Airtable, and Stripe processing fees.

D Term & Renewal

D.1 This Agreement commences on the Commencement Date and continues for an Initial Term of six (6) months.

D.2 After the Initial Term, this Agreement automatically renews for successive one-month periods unless either party provides at least thirty (30) days' written notice of non-renewal prior to the end of the then-current term.

E Intellectual Property

E.1 The Provider retains all Intellectual Property Rights in and to the Service, including all software, algorithms, workflows, prompts, templates, training data, and documentation. Nothing in this Agreement transfers any Intellectual Property Rights to the Customer.

E.2 The Customer grants the Provider a limited, non-exclusive, royalty-free licence to access and process Customer Data solely for the purpose of providing the Service during the Term.

E.3 The Customer must not, and must not permit any third party to, copy, reverse engineer, decompile, disassemble, modify, or create derivative works from the Service or any part thereof, except to the extent any such restriction is prohibited by law.

F Data Privacy & Confidentiality

F.1 Privacy Compliance

F.1.1 The parties acknowledge that the Service processes Personal Information of third parties (including property buyers and sellers) as defined in the *Privacy Act 1988* (Cth).

F.1.2 As between the parties, the Customer is the entity primarily responsible for compliance with the Australian Privacy Principles in respect of Personal Information collected and supplied to the Provider. The Provider processes Personal Information solely to provide the Service in accordance with the Customer's instructions and this Agreement, and will comply with its own obligations under the *Privacy Act 1988* (Cth) where applicable.

F.1.3 The Customer warrants that it has obtained all necessary consents, notices, and permissions under the Australian Privacy Principles to provide buyer Personal Information to the Provider.

F.1.4 The Provider will implement commercially reasonable security measures to protect Customer Data against unauthorised access, disclosure, alteration, or loss.

F.1.5 The Provider will notify the Customer promptly upon becoming aware of a data breach triggering obligations under the Notifiable Data Breaches scheme (Part IIIC, *Privacy Act 1988* (Cth)) and will reasonably cooperate with the Customer's response.

F.2 SMS & Electronic Messaging Compliance

F.2.1 Every outbound SMS includes "Reply STOP to opt out". The Provider will honour all opt-out requests promptly in compliance with the *Spam Act 2003* (Cth) and ACMA guidelines.

F.2.2 The Customer must not use the Service to send unsolicited commercial electronic messages to individuals who have not consented to receive them.



F.3 Confidentiality

F.3.1 Each party agrees to keep the other party's Confidential Information strictly confidential, to use it only for the purposes of this Agreement, and not to disclose it to any third party except as required by law. This obligation survives termination of this Agreement for a period of three (3) years.

G Termination

G.1 Either party may terminate this Agreement immediately by written notice if the other party: (a) commits a material breach of this Agreement and fails to remedy that breach within fourteen (14) days of written notice; or (b) becomes insolvent, enters administration, is wound up, or otherwise ceases to carry on business.

G.2 If the Customer terminates this Agreement during the Initial Term for any reason other than the Provider's material breach, the Customer must pay a termination fee equal to fifty percent (50%) of the Subscription Fees that would have been payable for the remainder of the Initial Term. The parties agree that this amount is a genuine pre-estimate of the Provider's loss (including setup costs, integration work, and lost revenue) and is not a penalty.

*Note: Under Australian law, penalty clauses are void. This early exit fee is specifically drafted as a genuine pre-estimate of loss and is intended to be enforceable in Australian courts (see *Andrews v Australia and New Zealand Banking Group Ltd* [2012] HCA 30).*

G.3 Upon termination or expiry of this Agreement: (a) all licences granted to the Customer cease immediately; (b) the Provider will, on written request made within thirty (30) days of termination, supply Customer Data in a commonly used electronic format; and (c) all accrued rights, obligations, and liabilities survive termination.

H Warranties & Limitation of Liability

H.1 To the maximum extent permitted by law (including the Australian Consumer Law), the Provider's total aggregate liability under or in connection with this Agreement is limited to the total Fees paid by the Customer in the six (6) months immediately preceding the event giving rise to the claim.

H.2 In no event will the Provider be liable for: (a) loss of profits, revenue, data, goodwill, or business opportunity; (b) indirect, consequential, special, punitive, or incidental loss; or (c) any loss arising from the acts, omissions, outages, or policy changes of Third-Party Services.

H.3 Nothing in this Agreement limits or excludes liability that cannot lawfully be limited or excluded, including liability for death or personal injury caused by negligence, fraud, or any non-excludable consumer guarantees under the Australian Consumer Law.

I General Provisions

I.1 Force Majeure. Neither party is liable for any delay or failure caused by a Force Majeure Event, provided the affected party gives prompt written notice and uses reasonable endeavours to mitigate the effect.

I.2 Entire Agreement. This Agreement constitutes the entire agreement between the parties and supersedes all prior representations, negotiations, and agreements.

I.3 Variation. This Agreement may only be varied by a written instrument agreed by both parties.

I.4 Assignment. The Customer must not assign any rights or obligations under this Agreement without the Provider's prior written consent.

I.5 Relationship. The parties are independent contractors. This Agreement does not create a partnership, joint venture, agency, or employment relationship.



I.6 Severability. If any provision is found invalid or unenforceable, it is severed and the remaining provisions continue in full force.

J Dispute Resolution

J.1 The parties agree to use good faith efforts to resolve any dispute through direct negotiation before commencing formal proceedings.

J.2 If a dispute cannot be resolved within twenty (20) business days of written notice, either party may refer the matter to mediation in Victoria, administered by the Resolution Institute or another mutually agreed mediator.

J.3 This clause does not prevent either party from seeking urgent injunctive or interlocutory relief.

K Acceptable Use & Suspension

K.1 Acceptable Use

The Customer must not, and must ensure its personnel do not, use the Service:

- in breach of any applicable law, including the *Privacy Act 1988* (Cth), *Spam Act 2003* (Cth), Australian Consumer Law, or any industry code or regulatory requirement;
- to send unlawful, misleading, deceptive, harassing, offensive, or unsolicited communications;
- to upload, transmit, or store any data, content, or material that infringes the Intellectual Property Rights, confidentiality, privacy, or other rights of any person;
- in a manner that interferes with, disrupts, damages, disables, overburdens, or compromises the security, integrity, or performance of the Service or any related systems;
- to gain, or attempt to gain, unauthorised access to the Service, related systems, other accounts, or any data not intended for the Customer;
- to reproduce, scrape, copy, mirror, frame, republish, reverse engineer, decompile, disassemble, modify, or create derivative works from the Service, except to the extent any restriction is prohibited by law;
- in a way that causes the Provider to breach its agreements with any Third-Party Service provider; or
- in a way that is inconsistent with any documentation, onboarding instructions, or reasonable directions issued by the Provider from time to time.

K.2 Suspension Rights

The Provider may suspend the Customer's access to all or any part of the Service immediately, or on notice where reasonably practicable, if the Provider reasonably believes that:

- the Customer is in breach of this Agreement;
- suspension is necessary to prevent or respond to a security incident, unauthorised access event, fraud risk, or misuse of the Service;
- the Customer's use of the Service may expose the Provider, the Service, any Third-Party Service, or any other customer to legal, regulatory, operational, or reputational risk;
- the Customer has failed to maintain any required Third-Party Service account, integration, permission, consent, or technical configuration necessary for the proper operation of the Service; or
- any amount due under this Agreement remains unpaid after its due date.



K.3 Effect of Suspension

Where access is suspended under this clause, the Customer remains liable for all Fees accruing during the period of suspension, except to the extent the suspension arises solely from the Provider's breach of this Agreement.

L Automated Outputs & Third-Party Services

L.1 Automated & AI-Assisted Outputs

The Customer acknowledges and agrees that the Service uses automation, machine learning, and artificial-intelligence-assisted decision support to generate lead qualification outputs, suggested responses, classifications, summaries, and workflow actions.

L.2 No Reliance Without Review

The Customer must review and satisfy itself as to the accuracy, completeness, legality, and suitability of any output, communication, classification, recommendation, or action generated or assisted by the Service before relying on it or allowing it to be sent to any third party. The Customer remains solely responsible for all business decisions, communications, and actions taken using or in connection with the Service.

L.3 Limitations of Automated Outputs

The Customer acknowledges that automated and AI-assisted outputs may be incomplete, inaccurate, biased, unavailable, delayed, or unsuitable for the Customer's intended purpose, and the Provider does not warrant that any such output will be error-free, fit for purpose, or achieve any particular commercial outcome.

L.4 Third-Party Services Dependency

The Service depends on Third-Party Services, including external software platforms, communication providers, APIs, and hosting or infrastructure providers, which are outside the Provider's control. The Customer acknowledges that Third-Party Services may be modified, suspended, withdrawn, rate-limited, integrated differently, or made subject to changed pricing, policies, permissions, or technical requirements at any time.

L.5 Third-Party Risk Allocation

To the maximum extent permitted by law, the Provider is not responsible for any unavailability, delay, defect, interruption, inaccuracy, loss, or failure to perform to the extent caused by any Third-Party Service or by the Customer's acts or omissions in relation to any Third-Party Service account, integration, credential, permission, or configuration.

M Customer Warranties, Data Handling & Termination Effects

M.1 Customer Warranties

The Customer represents and warrants on a continuing basis that:

- it has obtained, and will maintain, all rights, consents, notices, permissions, and legal bases required to collect, use, disclose, and provide Customer Data and Personal Information to the Provider;
- its use of the Service, and all instructions given to the Provider, will comply with all applicable laws, including privacy, spam, consumer protection, and anti-discrimination laws;
- all Customer Data and other materials provided by or on behalf of the Customer are accurate in all material respects and do not infringe the rights of any person; and



- it is responsible for maintaining its own records, backups, and independent verification processes in relation to leads, communications, CRM entries, and business workflows.

M.2 Data Export & Deletion

Following termination or expiry of this Agreement, the Provider will, on written request made within thirty (30) days after the effective date of termination or expiry, make Customer Data available to the Customer in a commonly used electronic format. After that 30-day period, the Provider may delete or de-identify Customer Data, unless retention is required by law or reasonably necessary for backup, legal, regulatory, audit, fraud prevention, billing, enforcement, or internal record-keeping purposes.

M.3 Retained & Aggregated Data

Nothing in this Agreement requires the Provider to delete information that has been aggregated or de-identified so that it no longer constitutes Personal Information, or to delete records required to be retained by law or for legitimate internal business purposes.

M.4 Accrued Fees & Access on Termination

Termination or expiry of this Agreement does not affect any rights or liabilities accrued before termination. On termination or expiry:

- all unpaid amounts owed by the Customer to the Provider become immediately due and payable;
- the Customer's right to access and use the Service ceases immediately, subject only to any data export rights expressly stated in this Agreement; and
- clauses concerning payment, Intellectual Property Rights, confidentiality, privacy obligations, liability limitations, dispute resolution, governing law, and any other provisions intended by their nature to survive, will continue in force.

M.5 Customer Indemnity

The Customer indemnifies the Provider against any loss, liability, cost, claim, damage, or expense suffered or incurred by the Provider arising from:

- the Customer's breach of this Agreement;
- the Customer's unlawful, misleading, or non-compliant collection or use of Personal Information;
- any SMS, email, or other communication sent using the Service on the Customer's behalf in accordance with the Customer's instructions or configuration; or
- any claim that Customer Data or materials supplied by the Customer infringe the rights of a third party,

except to the extent finally determined to have been caused by the Provider's negligence, wilful misconduct, or breach of this Agreement.

N Governing Law & Jurisdiction

N.1 This Agreement is governed by the laws of Victoria, Australia.

N.2 Each party irrevocably submits to the exclusive jurisdiction of the courts of Victoria, Australia.

O Customer Responsibilities

The Customer is responsible for:

- Maintaining valid and active Gmail, HubSpot, and Airtable accounts throughout the Term;



- Granting and maintaining the Provider's authorised access to Gmail, HubSpot CRM, HubSpot Meetings, and Airtable;
- Ensuring all buyer Personal Information processed via the Service is collected with appropriate consent under the *Privacy Act 1988* (Cth);
- Maintaining compliant privacy policies on all Customer-facing platforms.

ELECTRONIC ACCEPTANCE

By completing the Hermia onboarding form, ticking the acceptance checkbox, and paying the Setup Fee, the Customer confirms they have read, understood, and agreed to be bound by this Agreement.

capital@hermia.au · hermia.au · Victoria, Australia · ABN: 75 434 177 026